

Court No. - 29

Case :- WRIT - C No. - 59704 of 2016

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Siddhartha Varma,J.

Prima facie, it appears that the executive engineer has not complied with the order of the writ court dated 03.10.2016 passed in Writ Petition No. 47031 of 2016.

Let a counter affidavit be filed within two weeks.

List this matter on 09.01.2017 on which date the executive engineer will also be present and justify the demand of Rs. 20,20,306/-. In the meanwhile, the petitioner will deposit a sum of Rs. 10,00,000/- and file a proof of such deposit. Such deposit would be subject to the decision of the writ petition. In case the amount of Rs. 10,00,000/- is deposited, the electricity will not be disconnected.

Order Date :- 19.12.2016

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(Siddhartha Varma,J.)(Tarun Agarwala,J.)

Court No. - 39

Case :- WRIT - C No. - 59704 of 2016

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agarwal,A.K. Singhal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Counter affidavit filed today be kept on record.

An affidavit has also been filed by the petitioner stating that Rs. 10 lacs have been deposited on 26 December 2016.

Learned counsel for the petitioner prays for and is granted two weeks' time to file the rejoinder affidavit.

List this petition on 31 January 2017. When the petition is listed, the name of Sri Nikhil Chaturvedi shall also be shown as counsel for the respondents.

The personal presence of the Executive Engineer on future dates is exempted unless otherwise ordered.

Order Date :- 9.1.2017

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(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 59704 of 2016

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agarwal,A.K. Singhal

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Nikhil Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Sri A.K. Singhal, learned counsel for the petitioner has sent an illness slip.

List this petition on 23 February 2017.

Order Date :- 31.1.2017

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(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 39

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agarwal,A.K. Singhal

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Nikhil Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

As prayed for by learned counsel for the petitioner, list this petition on 9 March 2017 to enable him to file rejoinder affidavit.

Order Date :- 27.2.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 59704 of 2016

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agarwal,A.K. Singhal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Nikhil Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Passed over on the illness-slip of Shri A.K. Singhal, learned counsel for the petitioner.

Order Date :- 2.1.2018

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Court No. - 40

Case :- WRIT - C No. - 59704 of 2016

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agarwal,A.K. Singhal

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Nikhil Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri Nikhil Chaturvedi, learned counsel for the bank-respondent nos. 2 and 3.

After the matter was heard at some length, learned counsel for the petitioner Sri Anshul Kumar Singhal prays that he may be permitted to withdraw the present writ petition as the petitioner proposes to avail of any remedy available to him under U.P. Electricity Supply Code, 2005.

The writ petition is accordingly **dismissed** as withdrawn.

Any payments made under the interim orders of this Court shall be adjusted against pending bills.

Order Date :- 30.5.2018

Monika